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too strong to permit the extension of *Mitchell* to encompass appeals from orders of the sort before us.

C

We mention one final point. Petitioners argue that our effort to separate reviewable from unreviewable summary judgment determinations will prove unworkable. First, they say that the parties can easily manipulate our holding. A defendant seeking to create a reviewable summary judgment order might do so simply by adding a reviewable claim to a motion that otherwise would create an unreviewable order. “[H]ere, for example,” they say, “petitioners could have contended that the law was unclear on how much force may be exerted against suspects who resist arrest.” Brief for Petitioners 29, n. 11.

We do not think this is a serious problem. We concede that, if the District Court in this case had determined that beating respondent violated clearly established law, petitioners could have sought review of *that* determination. But, it does not automatically follow that the Court of Appeals would also have reviewed the here more important determination that there was a genuine issue of fact as to whether petitioners participated in (or were present at) a beating. Even assuming, for the sake of argument, that it may sometimes be appropriate to exercise “pendent appellate jurisdiction” over such a matter, but cf. *Swint v. Chambers County Comm’n*, 514 U. S. 35, 50–51 (1995), it seems unlikely that courts of appeals would do so in a case where the appealable issue appears simply a means to lead the court to review the underlying factual matter, see, e. g., *Natale v. Ridgefield*, 927 F. 2d 101, 104 (CA2 1991) (saying exercise of pendent appellate jurisdiction is proper only in “exceptional circumstances”); *United States ex rel. Valders Stone & Marble, Inc. v. C-Way Constr. Co.*, 909 F. 2d 259, 262 (CA7 1990) (saying exercise of such jurisdiction is proper only where there are “‘compelling reasons’”).

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Second, petitioners add, if appellate courts try to separate an appealed order's reviewable determination (that a given set of facts violates clearly established law) from its unreviewable determination (that an issue of fact is "genuine"), they will have great difficulty doing so. District judges may simply deny summary judgment motions without indicating their reasons for doing so. How, in such a case, will the court of appeals know what set of facts to assume when it answers the purely legal question about "clearly established" law?

This problem is more serious, but not serious enough to lead us to a different conclusion. When faced with an argument that the district court mistakenly identified clearly established law, the court of appeals can simply take, as given, the facts that the district court assumed when it denied summary judgment for that (purely legal) reason. Knowing that this is "extremely helpful to a reviewing court," *Anderson*, 477 U. S., at 250, n. 6, district courts presumably will often state those facts. But, if they do not, we concede that a court of appeals may have to undertake a cumbersome review of the record to determine what facts the district court, in the light most favorable to the nonmoving party, likely assumed. Regardless, this circumstance does not make a critical difference to our result, for a rule that occasionally requires a detailed evidence-based review of the record is still, from a practical point of view, more manageable than the rule that petitioners urge us to adopt. Petitioners' approach would make that task, not the exception, but the rule. We note, too, that our holding here has been the law in several Circuits for some time. See *supra*, at 308–309. Yet, petitioners have not pointed to concrete examples of the unmanageability they fear.

III

For these reasons, we hold that a defendant, entitled to invoke a qualified immunity defense, may not appeal a dis-

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trict court's summary judgment order insofar as that order determines whether or not the pretrial record sets forth a "genuine" issue of fact for trial. The judgment of the Court of Appeals for the Seventh Circuit is therefore

Affirmed.

Syllabus

KIMBERLIN *v.* QUINLAN ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE DISTRICT OF COLUMBIA CIRCUIT

No. 93–2068. Argued April 26, 1995—Decided June 12, 1995

6 F. 3d 789, vacated and remanded.

Howard T. Rosenblatt argued the cause for petitioner. With him on the briefs were *Jerrold J. Ganzfried* and *Ellen S. Winter*.

Deputy Solicitor General Bender argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Days*, *Assistant Attorney General Hunger*, and *Cornelia T. L. Pillard*.

Michael L. Martinez argued the cause for respondents. With him on the brief were *Steven D. Gordon* and *William J. Dempster*.*

**Anthony C. Epstein*, *Steven R. Shapiro*, *Arthur B. Spitzer*, *Leslie A. Brueckner*, and *Marc D. Stern* filed a brief for the American Civil Liberties Union et al. as *amici curiae* urging reversal.

A brief of *amici curiae* urging affirmance was filed for the State of Hawaii et al. by *Margery S. Bronster*, Attorney General of Hawaii, and *Girard D. Lau*, Deputy Attorney General, *Winston Bryant*, Attorney General of Arkansas, *Daniel E. Lungren*, Attorney General of California, *M. Jane Brady*, Attorney General of Delaware, *Alan G. Lance*, Attorney General of Idaho, *Pamela Carter*, Attorney General of Indiana, *Carla J. Stovall*, Attorney General of Kansas, *Chris Gorman*, Attorney General of Kentucky, *Hubert H. Humphrey III*, Attorney General of Minnesota, *Mike Moore*, Attorney General of Mississippi, *Jeremiah W. Nixon*, Attorney General of Missouri, *Joseph P. Mazurek*, Attorney General of Montana, *Jeffrey R. Howard*, Attorney General of New Hampshire, *Victoria A. Graffeo*, Attorney General of New York, *Betty D. Montgomery*, Attorney General of Ohio, *Drew Edmondson*, Attorney General of Oklahoma, *Jeffrey B. Pine*, Attorney General of Rhode Island, *Mark Barnett*, Attorney General of South Dakota, *Jan Graham*, Attorney General of Utah, *Jeffrey L. Amestoy*, Attorney General of Vermont, *James S. Gilmore III*, Attorney General of Virginia, *James E. Doyle*, Attorney General of Wisconsin, *Richard Weil*, Attorney General of the Commonwealth of the Northern